

FORD v GREENHORN GOLF, LLC

23CV47102

PLAINTIFF'S MOTION FOR MANDATORY INJUNCTION ORDERING DEFENDANT TO ABATE NUISANCE

Plaintiff's motion for preliminary injunction is on calendar for June 28, 2004. However, the matter is continued to July 12, 2024 at 9:00am in Department 2 in the interests of justice to allow Defendant Greenhorn Golf, LLC an opportunity to respond to new evidence presented for the first time in plaintiff's reply pleading. Specifically, on reply Plaintiff produced new documentation purporting to show that Defendant is the owner of the land containing the nuisance.

If Greenhorn wishes to file a response, it must not exceed 10 pages in length, and must be filed on or before July 3, 2024. Plaintiff is not given leave to file any additional evidence or argument.

"The general rule of motion practice ... is that new evidence is not permitted with reply papers ... [and] should only be allowed in the exceptional case" (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) If the court exercises its discretion to allow new evidence in reply papers, the opposing party must be given an opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) The new declaration and evidence filed with the reply is relevant to the court's decision in determining the likelihood of Plaintiff's success on the merits and therefore her right to an injunction, so the Court will allow the late presented evidence, but Greenhorn will be given an opportunity to respond to the new evidence.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

TRYON v ANGELS GUN CLUB, INC.

17CV42160

CROSS-COMPLAINANT’S MOTION TO SPECIALLY SET CROSS-ACTION FOR TRIAL

This case involves a lengthy land dispute. Plaintiff /Cross-Defendant Thomas Tryon (“Tryon”) owns property in Calaveras County, California, identified as Assessor’s Parcel Number (“AFN”) 064—005-007 (“Tryon Property”). Defendant/Cross-Complainant Angels Gun Club, Inc. (“Gun Club”) is a California non-profit corporation that owns real property in Calaveras County identified as APN 064-006-008; 064-006-007; and 064-005-031 (“Gun Club Property”) on which it operates a target and shooting range.

Tryon filed a complaint against Gun Club alleging that the operation of the facility was resulting in overshooting on his land and lead contamination on his property; Gun Club cross-complained. Tryon dismissed his causes of action against Gun Club and at that time the trial date was vacated.

On January 19, 2024, the Court granted Gun Club’s request to file a Fourth Amended Cross Complaint in which it echoed much of the earlier Cross-Complaints but sought to add additional Cross-Defendants.

Now before the Court is Gun Club’s motion to specially set the cross-action for trial before expiration of the 5-year statute under Code of Civil Procedure 583.310. Cross-Defendants oppose the motion.

I. Background

On or about, September 4, 1984, Tryon and Gun Club entered into an agreement that provided for Gun Club to purchase such real property known as the Tracy Quartz Mine, and identified as APN 064-006-007, portions of which were to be transferred to Tryon in exchange for land owned by the Gun Club (“Land Swap Agreement”, Third Amended Complaint, Ex. C.) In exchange, the Agreement provided for Tryon to transfer to Gun Club a portion of real property, identified as Parcels A and C in the Land Swap Agreement. Tryon and his family would be allowed to have access to Parcel A for grazing purposes, range improvement purposes, construction of dam upon Indian Creek, and mineral mining without charge to Tryon.